Brazoria County District Court

Cause No. 2024-CV-0030

Ashley Duncan, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	7-25-24
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant generally denies each and every alleagtion contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

For its affirmative defenses, Defendant states as follows. First, the collision was caused in whole or in part by Plaintiff's own negligence, including failure to keep a proper lookout, failure to yield the rihgt of way, and failure to maintain a single lane of travel. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced in proportion to Plaintiff's percentage of responsibility, and bars recovery entirely if that percentage exceeds fifty percent.

Second, Defendant asserts proportionate responsibility as to any other person whose negligence contributed to the occurrence, and requests that the trier of fact designate all responsible parties and apportion responsibility among them.

Third, Defendant asserts that Plaintiff failed to mitigate damages by not following reasonable medical advice and by delaying necessary treatment, and that any recovery for mdeical expenses is limited to amounts actually paid or incurred under Texas Civil Practice and Remedies Code Section 41.0105.

Defendant reserves the right to amend this answer as discovery proceeds.